

IN THE COURT OF APPEAL OF TANZANIA

AT DODOMA

CIVIL APPLICATION NO. 765 OF 2026

OUSSENE MANSOIB AGASIN 1ST APPLICANT

AHMAD SEIF AHMAD..... 2ND APPLICANT

VERSUS

KASSIM BAKARI TRANSPORT COMPANY RESPONDENT

**(An application for stay of execution from the Decree of the High Court of
Zanzibar at Tunguu)**

(Mohamoud, J.)

dated the 20th day of May, 2026

in

Civil Case No. 82 of 2023

.....

RULING OF THE COURT

2nd September, 2026

MLYAMBINA, J.A.:

This application is premised on an order for stay of execution of the decree of the High Court of Zanzibar at Tunguu, in Civil Case No. 82 of 2023, dated 20th May, 2026, pending the hearing and determination of the intended appeal.

The application is by Notice of Motion made under Rules 11(3), (4), (4A) and (6) of the Tanzania Court of Appeal Rules, 2009, as amended (the Rules), and is supported by an affidavit sworn by Mr. Rajab Abdala

Rajab, learned counsel for the applicants. When the application was called on for hearing, Mr. Rajab Abdala Rajab informed the Court that the respondent had been duly served with the application on 3rd August, 2026 and that he was ready to proceed with the hearing. On the other hand, Mr. Daniel Haule Ngudungi, learned counsel for the respondent, informed the Court that he had received instructions only recently and had encountered difficulties in filing the Respondent's documents electronically in Zanzibar as it is not applicable currently. He stated that an officer from his chambers had accordingly been dispatched to Zanzibar to lodge a counter-affidavit and a notice of change of advocate, which documents he undertook to file later today. In the circumstances, he invoked Rule 4 of the Rules and prayed to be allowed to address the Court on legal issues only. Mr. Rajab had no objection to that prayer.

Having considered the explanation advanced and the absence of objection, I granted the prayer and allowed Mr. Ngudungi to address the Court on the legal issues only arising from the application.

On the substance of the application, Mr. Rajab prayed to adopt the supporting affidavit and the documents annexed thereto. He submitted that the application had been brought within the prescribed period and that the applicants had complied with the requirements of the Rules. He referred particularly to paragraphs 6 and 7 of the affidavit, which set out

the substantial loss for the applicants if execution proceeds, and to paragraph 9, in which they undertake to furnish security for the due performance of the decree. He accordingly urged the Court to grant the application.

In reply, Mr. Ngudungi, submitted that the applicants are foreigners, nationals of Seychelles resident outside Tanzania and that they do not have property within Tanzania against which the decree could readily be executed. He therefore urged that, if a stay was to be granted, the applicants should be required to furnish a local bank guarantee sufficient to secure the respondent's interest in the decretal amount. He further submitted that the security should remain effective for the duration of the intended appeal, approximately for two years. He emphasised that the decretal amount of Euro 151,687.95 is substantial and that the respondent would face considerable difficulty in recovering the amount if the intended appeal ultimately failed. He therefore prayed that the security be furnished to the satisfaction of the Court.

In rejoinder, Mr. Rajab objected the respondent's submissions which, in his view, amounted to factual assertions from the bar in the absence of a counter-affidavit. He nevertheless conceded that the applicants are foreigners, though not nationals of Seychelles as submitted by Mr. Ngudungi, but nationals of the Comoros. He further conceded that the

decretal amount is substantial and that the applicants are ready to furnish security, including a local bank guarantee if so directed by the Court.

I have considered the application, the supporting affidavit and the documents annexed thereto, as well as the submissions of learned counsel for both parties and the concessions properly made in the course of argument. I have also taken into account that, although the respondent was duly served with the application, no counter-affidavit had been filed by the time of the hearing.

The record shows that the decision of the High Court of Zanzibar at Tunguu in Civil Case No. 82 of 2023 was delivered on 20th May, 2026, awarding the respondent Euro 151,687.95. The applicants lodged a Notice of Appeal on 11th June, 2026 and thereafter took steps to obtain certified copies of the proceedings, judgment and decree. An application for execution was subsequently filed, and the applicants were served with the notice of intended execution on 23rd July, 2026. The present application was filed on 29th July, 2026, six days after such service. The Court is therefore satisfied that the application was made within the period prescribed by Rule 11(4) of the Rules.

The issue which falls for determination is whether good cause has been shown to warrant the grant of a stay of execution. I'm mindful that

the grant of stay is a discretionary remedy and that the discretion must be exercised judiciously, having regard to the circumstances of the particular case and the requirements of Rule 11 of the Rules.

The applicants' supporting affidavit sets out the circumstances in which they apprehend substantial loss if execution proceeds before the intended appeal is determined and explains why the intended appeal may thereby be rendered nugatory. The decretal amount is, admittedly, substantial, being Euro 151,687.95. I have also considered the concern raised regarding the practical difficulty of recovering the decretal amount should the intended appeal ultimately succeed. In **Tanzania Ports Authority v. Pembe Flour Mills Ltd**, Civil Application No. 78 of 2007 as cited in **Kasimu Faki Bakari v. Ramadhani Faki Bakari and Others**, (Civil Application No. 278 of 2025) [2025 TZCA] 594 (17 June 2025), the Court recognised that irreparable loss includes loss which cannot be recovered in any form or manner, including by way of damages or other monetary recompense.

The Court is satisfied that, in the circumstances of this case, the applicants have demonstrated a sufficient risk of substantial loss to justify preservation of the *status quo* pending determination of the intended appeal. At the same time, I recognise that the respondent is entitled to protection against the risk that the decree may ultimately be sustained and

yet become difficult to realise. That concern is adequately addressed by the applicants' unequivocal undertaking to furnish security.

In **Anord L. Matemba v. Tanzania Breweries Ltd**, Civil Application No. 95 of 2012, (2016) TZCA 22 74 (26 September, 2016) the Court emphasised that security for the due performance of a decree serves to safeguard the interests of the decree-holder in the event that the decree is sustained on appeal. Likewise, in **Mantract Tanzania Ltd v. Raymond Costa**, (Civil Application No. 11 of 2010) [2011] TZCA 519 (10 October 2011), the Court held that security need not necessarily be furnished before an order of stay of execution is made; a firm undertaking to furnish security may, in an appropriate case, suffice, provided the Court prescribes a reasonable period within which it is to be furnished.

In the present case, the applicants have expressly undertaken to furnish security and, through their learned counsel, have indicated their readiness to furnish a local bank guarantee. I consider that such security, if furnished to the satisfaction of the Registrar, will sufficiently safeguard the respondent's interests while preserving the applicants' right to pursue their intended appeal.

I have also examined the documents accompanying the application and got satisfied that the requirements of Rule 11(7) of the Rules have

been complied with, the applicants having annexed the Notice of Appeal, the impugned judgment and decree, and the notice of intended execution. Thus, the application is competent before the Court.

At this stage, the Court is not required to determine the merits of the intended appeal. The Court concern is whether the circumstances disclosed justify preserving the subject matter of the intended appeal and protecting the efficacy of the appellate process. Having weighed the interests of both parties, I'm satisfied that they are best served by granting a stay of execution upon terms designed to secure the respondent's position as decree-holder.

Accordingly, the application is granted with the following orders:

1. Execution of the decree of the High Court of Zanzibar at Tunguu in Civil Case No. 82 of 2023, dated 20th May, 2026, is hereby stayed pending the hearing and determination of the intended appeal.
2. The applicants shall, within thirty (30) days from the date hereof, furnish security for the due performance of the decree in the form of a bank guarantee issued by a local bank operating in Tanzania, as may be approved by the Registrar of the Court, for the decretal sum of Euro 151,687.95.

3. The security shall remain valid until the intended appeal is finally determined or until otherwise ordered by the Court.
4. In default of compliance with paragraph 2 above within the prescribed period, the stay of execution granted herein shall automatically lapse unless otherwise ordered by the Court.
5. The applicants shall take all necessary steps to prosecute the intended appeal with due diligence and without undue delay.
6. The costs of this application shall abide the outcome of the intended appeal.

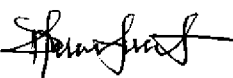
It is so ordered.

DATED at **DODOMA** this 2nd day of September, 2026.

Y. J. MLYAMBINA
JUSTICE OF APPEAL

Ruling delivered virtually this 2nd day of September, 2026 in the presence of Mr. Rajab Abdalla Rajab, learned counsel for the applicants, Mr. Daniel Haule Ngudungi, learned counsel for the Respondent and Ms. Asha Abdallah, Court Clerk; is hereby certified as a true copy of the original.




D. P. KINYWAFU
DEPUTY REGISTRAR
COURT OF APPEAL